

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**COMPLAINANT’S EXPEDITED MOTION FOR
CONFIDENTIAL TREATMENT**

Pursuant to 46 C.F.R. § 502.5(b), Complainant TPG Pressure, Inc. (“**TPG**”), through its undersigned counsel, hereby moves for an order for confidential treatment of Exhibit A to the Declaration of Tiffany Comprés filed in connection with TPG’s *Expedited Motion for In Camera Review and to Compel Production of Documents* (the “**Motion to Compel**”), filed simultaneously herewith. In support of the motion, TPG states as follows:

1. On September 8, 2023, Judge Wirth issued the *Order Entering Protective Order* (the “**Order**”) granting the parties’ *Joint Motion for Entry of Confidentiality Stipulation and Proposed Protective Order*, filed on September 6, 2023.
2. The Order defines “Confidential Information” to include “information ... that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.” Order at 1.

3. The Order defines “Proceeding Material” to include “any information copied or extracted therefrom; . . . and testimony, . . . that include Confidential Information.” Order at preamble.

4. On or about July 14, 2023, Respondents produced documents, including email chains bates numbered EPIC_0040143-46 and EPIC_0051369-77.

5. During the September 28, 2023, deposition of Respondent representative Yohanse Manzanarez, Respondents’ counsel objected to EPIC_0051369-77, which was initially introduced as Exhibit 5, alleging for the first time that these emails are protected by attorney-client privilege and were produced by mistake. Decl. of Tiffany Comprés, Ex. A (Oct. 13, 2023).

6. On October 6, 2023, counsel for Respondents informed that they were clawing back the emails and insisting they are protected by attorney-client privilege. *Id.* Ex. B.

7. Although Respondents’ counsel has not “designated” the email chains bates numbered EPIC_0040143-46 and EPIC_0051369-77 as “Confidential” pursuant to the Order, in an abundance of caution, given Respondents’ counsel alleges the documents to be privileged (which TPG disputes), and has clawed them back, TPG seeks confidential treatment of these documents pursuant to the Order.

8. In support of its Motion to Compel, TPG seeks to use a portion of the Deposition Transcript of Yohanse Manzanarez that discussed EPIC_0040143-46 and EPIC_0051369-77 (the “**Deposition Excerpt**”), designated as Exhibit A to the Declaration of Tiffany Comprés. Pursuant to the Order, such testimony discussing confidential information is also confidential.

9. Accordingly, in an abundance of caution and pursuant to Paragraph 16 of the Order, TPG is seeking confidential treatment under 46 C.F.R. § 502.5 of the Deposition Excerpt.

WHEREFORE, TPG respectfully requests that the Commission grant this motion and that it be given leave to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2), and for all other relief deemed fair and proper.

Respectfully submitted October 13, 2023

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*Counsel for Complainant
TPG Pressure, Inc.*

CERTIFICATE OF SERVICE

I certify that on October 13, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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